June 16, 2025

Centers for Medicare & Medicaid
Department of Health and Human Services
Attention: RIN 0938-AV68

Submitted via regulations.gov

RE: Request for Information; Health Technology Ecosystem (RIN 0938-AV68)

On behalf of National Council for Mental Wellbeing (National Council), thank you for the opportunity to comment on the Centers for Medicare & Medicaid Services (CMS) Request for Information regarding the Health Technology Ecosystem, at 90 *Federal Register* ("FR") 21034 (May 16, 2025). National Council is a membership organization representing over 3,200 mental health and substance use treatment organizations and the more than 10 million children, adults, and families they serve across our nation.

We are grateful for CMS' efforts in continuing to strengthen the effective and responsible adoption of technology by patients and increasing beneficiary access to effective digital capabilities. Thoughtful efforts to drive adoption of safe and high-quality digital health products offer opportunity to increase access to mental health and substance use care, relieve administrative burden, and decrease workforce burden for mental health and substance use care professionals, particularly in workforce shortage areas.

Please see below for our comments on questions PR-1 and PR-4 (90 FR 21038).

PR-1, "*What can CMS and its partners do to encourage providers, including those in rural areas, to leverage approved (see description in PC-5) digital health products for their patients?*" (90 FR 21038)

The option to leverage safe, high-quality digital health products to support care between mental health and substance use providers and their patients, particularly in rural areas where transportation barriers and provider shortages can make getting the right care at the right time difficult. Currently, providers face obstacles to leveraging approved digital health products for patients, inclusive of technological barriers (e.g. limited smartphone access), lack of provider knowledge of available tools, and lack of available psychoeducation for patients on the use of these tools. Simultaneously, it's also key that furthering the use of digital technologies supplements, not supplants access to in-person care, particularly in considering implications and treatment effectiveness for older adults. Additionally, patients must be able to have access to the device needed for product use as well as adequate broadband, particularly in rural areas, where such technologies would require it in order for the service to be implemented. Finally, while steps have been taken under Medicare to facilitate digital therapeutic reimbursement, it is key adequate reimbursement methodologies and resources exist for successful digital health product implementation.

In considering the responsibilities providers have when recommending a digital product to be used by a patient, providers should aim to understand data privacy protections and related legal requirements as well as data use policies for digital health products as a part of protecting patient privacy and ensuring transparency of any data use policies as well as risks and benefits for the patient. In order to provide safe, effective, and high-quality care, it's key providers are aware of and use digital products that are accurate, safe, efficacious, and reliable to actively work toward ameliorating any inaccuracy issues in delivering care. Additionally, it is key providers furnish psychoeducation on the use of these tools for patients prior to implementation in order to optimize effectiveness.

PR-4. What changes or improvements to standards or policies might be needed for patients' third-party digital products to have access to administrative workflows, such as auto-populating intake forms, viewing provider information and schedules, and making and modifying an appointment?

As mentioned above, digital health products, especially those that automate systems or aid decision-making, must be accurate, safe, efficacious, and reliable. Such products must comply with all legal requirements, particularly privacy requirements, provide information and data use policies transparently, and they must not perpetuate any inaccuracy issues in delivering care. To improve administrative workflows, as well as to improve implementation more broadly, digital products should not contribute to administrative burden. Such products should be able to integrate, to the extent allowable under statutory and regulatory requirements, with the providers' existing tools in order to not create duplicative efforts. Particularly with respect to reporting requirements providers face, we have heard from our members that reporting across systems that do not integrate creates a significant amount of provider burden. Additionally, digital health products should recognize the variability across state requirements providers must meet as well as the variability across products that address EHR systems, and variability across state requirements. Finally, infrastructure for both the patient and provider must be in place in order to implement.

National Council appreciates the opportunity to provide these comments. We welcome any questions or further discussion about the recommendations described here. Please contact Reyna Taylor at ReynaT@thenationalcouncil.org. Thank you for your time and consideration.

Sincerely,

Reyna Taylor
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National Council for Mental Wellbeing